

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMOILJON MUMINOV,

Petitioner

VS.

ROZIYA SHAYDULLAEVA,

Respondent

) Case Number: FDI-26-802490

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL IR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ismoiljon Muminov (Husband) and Respondent Roziya Shaydullaeva (Wife). There are no minor children subject to this proceeding. The parties married on 7/24/2024. The parties agree they separated on 3/6/2025, for a marriage of 7 months.
- 2) On 1/20/2026, in related Case No. FDV-26-818902, a Request for Domestic Violence Restraining Order was filed by Respondent seeking protection against Petitioner. On 2/06/2026, both parties appeared for a hearing. The Court did not find sufficient evidence to grant the Domestic Violence Restraining Order. Thus, the case was dismissed without prejudice.
- 3) Now on for hearing is Respondent's Request for Order filed 7/31/2026 requesting \$5,471 per month in temporary guideline spousal support based on an imputation of \$25,000 per month in income to Petitioner. Respondent states that prior to marriage she primarily worked as a rideshare and food delivery driver through Uber, Lyft, and other delivery apps. Respondent states that during the parties' marriage, Petitioner decided she would not work and the parties lived in Petitioner's truck. Respondent states that Petitioner owns Deep Cluster LLC and Trusted Logistics

1 LLC, but Respondent does not state an estimated amount that Petitioner owns from those
2 businesses. Respondent states that she personally observed Petitioner driving very long hours and
3 working very long weeks. When Respondent suggested that Petitioner consider employment as an
4 Uber Black driver and potentially earn \$8,000 - \$9,000 per month, Petitioner stated that was
5 “small money” compared to what he was earning in trucking. Respondent states Petitioner gave
6 Respondent a \$15,000 dowry (which Respondent states she used to cover her living expenses and
7 to cover expenses to continue her residency in the United States following separation). Respondent
8 also states Petitioner gave her a weekly allowance of \$120 - \$200 during marriage. Respondent
9 states that it took her seven weeks after separation to begin working again. On 4/22/2025,
10 Respondent rented a vehicle and began driving for rideshare and delivery apps. Her monthly car
11 payments were \$2,285 and she now owns the car as of June 2026. Respondent also states that she
12 is currently living temporarily with three other women in a two-bedroom apartment. Respondent
13 states that she works approximately 20 – 30 active hours per week and spends seven to eight hours
14 per week waiting for ride requests, driving to pick-up locations, etc.

15 4) On 7/30/2026, Respondent filed an Income and Expense Declaration. Respondent states she is 32
16 years old and is self-employed as a rideshare driver. Respondent states that she earns on average
17 \$2,571 in net self-employment income per month and last month she earned \$2,371. Respondent
18 states she has \$97 in cash savings, \$57 in easily saleable investments, and \$8,901 in personal
19 property. Respondent states that her estimated and actual monthly expenses total \$3,699.
20 Respondent states she owes \$1,249 for an iPhone. Respondent did not attach any documentation
21 regarding her pay to her Income and Expense Declaration.

22 5) On 8/31/2026, Petitioner filed a Responsive Declaration.

23 6) On 8/31/2026, Petitioner filed an Income and Expense Declaration. Petitioner states he is 31 years
24 old and is self-employed. Petitioner states that he has owned Ismail Logistics LLC, a “logistics
25 (trucking)” business for the past four years. Petitioner states that he earns on average \$5,114 and
26 that last month he earned \$20,885 in net self-employment income, which Petitioner states was an
27 unusually high earning month due to “market spike for load rates in trucking.” Petitioner states
28 that his estimated and actual monthly expenses total \$4,073.88. Petitioner states that he has \$6,253
29 in cash savings and owes \$17,163 in credit card debt.

- 1 7) Petitioner lodged a Schedule C for 2025 as well as paystubs. The 2025 Schedule C states that
2 Petitioner earned \$207,796 in gross income and paid business expenses of \$180,709, including
3 \$136,097 in car and truck expenses, \$31,476 in vehicles, machinery, and equipment, \$5,318 in
4 supplies \$4,564 in travel, and \$2,004 in utilities. Therefore, Petitioner's net self-employment
5 income for 2025 was \$27,087. Petitioner's paystubs show that as of 7/13/2026, he paid himself
6 \$33,450 in year-to-date gross pay and \$19,659 in year-to-date net pay.
- 7 8) On 9/3/2026, Petitioner filed a declaration asking the Court to deny all of Respondent's requested
8 relief. Petitioner states he is self-employed as an owner-operator truck driver and his income and
9 operation expenses vary substantially month to month. Petitioner states that he often has extended
10 non-operating periods and temporarily paused operations for his trucking business between
11 February 2026 and 7/27/2026. Petitioner states he lives in his truck. Petitioner does not refute
12 Respondent's identification of Petitioner owning Deep Cluster LLC. However, Petitioner claims
13 Deep Cluster LLC has not historically generated income and does not presently generate income.
14 Further Petitioner provides that Trusted Logistics LLC is being used. According to Petitioner, such
15 use originates from Business payments being deposited into a bank account under Trusted
16 Logistics LLC. Petitioner further asserts the use of Trusted Logistics LLC does not provide a
17 separate source of income. Petitioner attached as proof of organization, Articles of Organization of
18 Ismail Logistics LLC to Petitioner's declaration.
- 19 9) On 9/3/2026, Petitioner filed a Proof of Service indicating that his Responsive Declaration,
20 Income and Expense Declaration, recent paystubs, and Schedule C for 2025 was mailed to
21 Respondent's attorney on 8/31/2026.
- 22 10) Respondent did not file a Reply Declaration.

23 **B. Findings and Order**

- 24 1) Respondent's request to impute \$25,000 per month in income to Petitioner is denied. Respondent
25 has not met her burden to prove that Petitioner has the ability or opportunity to earn that amount per
26 month.
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1 2) The Court will calculate guideline spousal support using the income figures provided by the
2 parties, i.e., \$5,114 in average net self-employment income for Petitioner and \$2,571 in average net
3 self-employment income for Respondent.

4 3) Effective 8/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
5 herein by reference, Petitioner shall pay Respondent \$507 per month in temporary guideline spousal
6 support, payable by the 15th of each month.

7 4) Petitioner owes Respondent \$1,014 in spousal support arrears for August 2026 and September
8 2026. Commencing 10/15/26 Petitioner shall pay respondent an additional \$100 per month until these
9 arrears are satisfied.

10 5) Respondent's attorney shall prepare the Findings and Order After Hearing.

11 C. **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10
12 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel
13 for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the
14 other party did not appear or the matter was uncontested, submit the proposed order after hearing
15 directly to the court. Failure to submit the order after hearing within 10 days may allow the other
16 party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court,
17 Rule 5.125(d).
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Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	5982	5982
Filing status	SINGLE	SINGLE	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1 *	Nets(adjusted)	Husband		
Wages+salary	0	0	Husband	3886		
Self-employed income	5114	2571	Wife	2096		
Other taxable income	0	0	Total	5982		
TANF+CS received	0	0	Support			
Other nontaxable income	0	0	Addons	0		
New spouse income	0	0	Guideln CS	0		
401(k) employee contrib	0	0	S.Clara SS	507		
Adjustments to income	0	0	Total	507		
SS paid prev marriage	0	0	-			
CS paid prev marriage	0	0				
Health insurance	0	0		Wife		
Other medical expense	0	0		Payment cost/benefit	507	507
Property tax expense	0	0		Net spendable income	2602	2602
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	44%	44%
Misc tax deductions	0	0	CS	0		
Qual bus income ded	0	0	SS	507		
Required union dues	0	0	Total	507		
Mandatory retirement	0	0		Dep. exemption value	0	0
Hardship deduction	0 *	0 *	Saving	0		
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Husband pays Guideline SS, Proposed SS